

	26-1554736	
12.	Mito's Holdings, Inc. v. Deniz Restaurants, LLC 25-1534622	Before the Court are three demurrers filed by defendants Deniz Restaurants, LLC (Deniz), Berkay Altintas (Berkay) and Nalan Altintas (Nalan)(collectively, Defendants) to the complaint of plaintiff Mito's Holdings, Inc. (Plaintiff). For the reasons set forth below, the demurrers by Deniz, Berkay and Nalan are SUSTAINED with 20 days' leave to amend on the 8th cause of action and OVERRULED on the 9th, 10th and 12th causes of action. In addition, the demurrers by Berkay and Nalan are SUSTAINED with 20 days' leave to amend on the 6th cause of action. A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (<i>Code of Civ. Proc. § 430.10, subd. (e).</i>) Demurrer by Deniz <u>8th cause of action</u> (indemnification): <i>Civil Code section 2772</i> provides: "Indemnity is a contract by which one engages to save another from a legal consequence of the conduct of one of the parties, or of some other person." Because an indemnity agreement is basically a contract, it is subject to all the requirements applicable to contracts in general. (<i>Branson v. Sun Diamond Growers</i> (1994) 24 Cal.App.4th 327, 347; see also <i>San Mateo Union High School Dist. v. County of San Mateo</i> (2013) 213 Cal.App.4th 418, 439 [elements of breach of contract].) Here, Plaintiff fails to adequately allege damages, i.e., that a third party has filed a claim against Plaintiff arising out of Defendants' alleged wrongful conduct. Plaintiff simply alleges exposure to "potential claims, demands and liability," that has not materialized. (Compl. ¶ 164.) As such, the demurrer is SUSTAINED as to this cause of action with 20 days' leave to amend. <u>9th and 10th cause of action</u> (fraud claims): Defendant does not argue insufficiency of pleading allegations – only that these claims are duplicative of the breach of contract claim. Redundancy of a cause of action is not a ground on which a demurrer may be sustained. (<i>Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC</i> (2008) 162 Cal.App.4th 858, 889-890.) Moreover, the Court finds the fraud claims are not duplicative of the breach of contract claim because they arise out of independent tortious conduct, not breach of contractual terms. (Compl. ¶¶ 173-180, 185-191.) As such, the demurrer is OVERRULED as to these causes of action. <u>12th cause of action</u> (intentional interference with prospective economic advantage): The Court finds Plaintiff adequately pleads the elements of this cause of action, including actual disruption that has caused damage to Plaintiff's reputation and goodwill. (<i>Korea Supply Co. v. Lockheed Martin Corp.</i> (2003) 29 Cal.4th 1134, 1153 [elements]; see also Compl. ¶¶ 209-216.) As such, the demurrer is OVERRULED as to this cause of action.